

**NEW YORK STATE SUPREME COURT
COUNTY OF NEW YORK**

----- X
RHONDA WILLIAMS, individually,
RHONDA WILLIAMS, as the parent and guardian
of D.L. Jr., a minor, and
RHONDA WILLIAMS, as administrator
of the Estate of TROY ANTHONY JAMES JR. aka
DEZINA LEGACY, deceased,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT OFFICERS JOHN DOES 1, 2, 3, etc., (the
name John Doe being fictitious as the true names of said
officers are currently not known), all of whom
are sued in their individual capacities.

Defendants.
----- X

Index No.**SUMMONS**

Plaintiffs designate
New York County
as the County of Venue

Venue is based upon location
where claims arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon plaintiffs' attorneys, at the addresses stated below, an answer to the attached complaint.

If this summons was personally served upon you in the State of New York, the answer must be served within 20 days after such service of the summons, excluding the date of service.

If the summons was not personally delivered to you within the State of New York, the answer must be served within 30 days after service of the summons is complete as provided by law.

If you do not serve an answer to the attached complaint within the applicable time limitation, a judgment may be entered against you, by plaintiff, for the relief demanded in the complaint, without further notice to you.

The action will be heard in the Supreme Court of the State of New York, in and for the County of New York. This action is brought in the County of New York because it is based upon location where claims arose.

Dated: November 13, 2023
New York, New York

Respectfully Submitted,

THE ABOUSHI LAW FIRM PLLC



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To: CITY OF NEW YORK
c/o
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New York, New York 10007

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Defendants.
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**VERIFIED
COMPLAINT**

**JURY TRIAL
DEMANDED**

Index No.:

Plaintiffs RHONDA WILLIAMS, individually, RHONDA WILLIAMS, as the parent and guardian of D.L. Jr., a minor, and RHONDA WILLIAMS, as administrator of the of the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY, deceased, by their attorneys, The Aboushi Law Firm PLLC and Beldock Levine & Hoffman LLP, as and for their Verified Complaint, do hereby state and allege:

PRELIMINARY STATEMENT

1. This action is brought by the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY (hereinafter “Mr. Legacy”), deceased, who died in New York City Police Department (“NYPD”) custody on June 4, 2022 after officers unnecessarily pursued him and failed to provide adequate treatment to Mr. Legacy in the midst of a mental health crisis.

2. Plaintiffs seek (i) compensatory damages for, *inter alia*, Defendants’ violations of New York state law and New York state constitutional law which caused physical, psychological

and emotional distress, and other financial loss; (ii) punitive damages to deter such intentional or reckless deviations from well-settled law; and (iii) such other and further relief, including costs and attorneys' fees, as this Court deems equitable and just.

JURISDICTION AND VENUE

3. This action is brought for violations of Plaintiffs RHONDA WILLIAMS, individually, RHONDA WILLIAMS, as the parent and guardian of D.L. Jr., a minor, and RHONDA WILLIAMS, as administrator of the of the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY's rights under New York state law and New York state constitutional law.

4. The amount of damages sought exceeds the jurisdiction of all lower courts which would otherwise have jurisdiction.

5. Pursuant to CPLR §§ 503 and 504, venue is proper in New York County because it is the county in which the events giving rise to this action took place.

JURY DEMAND

6. Plaintiffs demand a trial by jury in this action on each and every one of their claims.

PARTIES

7. Plaintiff RHONDA WILLIAMS, is a citizen of the United States and the State of New York, and was at all times relevant to this complaint a resident of Bronx County, City and State of New York, and the fiancée of TROY ANTHONY JAMES JR. aka DEZINA LEGACY.

8. Plaintiff RHONDA WILLIAMS is the mother and natural guardian of D.L. Jr., a minor and a child of decedent TROY ANTHONY JAMES JR. aka DEZINA LEGACY. D.L. Jr. was, at all times relevant herein, approximately six months old. At all times relevant to this complaint, D.L. Jr. was a resident of Bronx County, City and State of New York.

9. Plaintiff RHONDA WILLIAMS, is the duly appointed administrator of the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY .

10. Defendant THE CITY OF NEW YORK (“the City”) is a municipal entity created and authorized under the laws of the State of New York.

11. The City is authorized by law to maintain a police department, and does maintain the NYPD, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers.

12. The true names and shield numbers of defendant NYPD Police Officers John Does 1, 2, 3, etc. are not currently known to the Plaintiffs. However, they are employees or agents of the NYPD. Accordingly, they are entitled to representation in the action by the New York City Law Department (“Law Department”) upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiffs intend to name said officers as Defendants in an amended pleading once the true names and shield numbers of said Defendants become known to Plaintiffs and (b) that the Law Department should immediately begin preparing their defense in the action. Plaintiffs have diligently sought to identify the officers involved by, *inter alia*, filing FOIL requests and appealing denial of those requests, including specifically requesting that the NYPD produce “Documents which would contain the names and badge numbers of the officers who were involved in the arrest and death of Mr. James on June 04, 2022 and the events which lead up to that incident at or around 149th Street and Adam Clayton Powell Blvd., New York, NY.” The identity of the officers involved is in the unique control and possession of Defendants.

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

13. On August 23, 2022, a Notice of Claim was timely filed by Rhonda Williams individually and on behalf of D.L. Jr., the sole distributee of the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY.

14. On February 27, 2023, Rhonda Williams appeared for an examination pursuant to § 50-h of the General Municipal Law.

15. On May 17, 2023, Rhonda Williams, as putative administrator of the Estate of Dezina Legacy, filed a Notice of Claim for personal injury as to Dezina Legacy.

16. On May 25, 2023, putative administrator of the Estate of Dezina Legacy, Rhonda Williams, filed a petition for leave to have that notice of claim deemed timely filed *nunc pro tunc*.

17. On August 7, 2023, the New York State Supreme Court, County of New York granted the petition for leave to have the late notice of claim deemed timely filed *nunc pro*.

18. On September 27, 2023, the Surrogate's Court of the State of New York, County of New York issued Letters of Administration to Rhonda Williams.

19. On October 12, 2023, Rhonda Williams, as administrator of the Estate of TROY ANTHONY JAMES JR. aka DEZINA LEGACY, filed a Notice of Claim for the wrongful death of TROY ANTHONY JAMES JR. aka DEZINA LEGACY.

20. On November 1, 2023, Rhonda Williams, as duly appointed administrator of the Estate of Troy Anthony James, Jr., appeared for an additional examination pursuant to § 50-h of the General Municipal Law regarding the May 17, 2023 and October 12, 2023 Notices.

21. At least thirty (30) days has elapsed since the Plaintiffs filed each Notice of Claim, and the City of New York and New York City Comptroller's Office have not adjusted the same within the period of time provided by statute.

22. Plaintiffs have complied with all conditions and requirements precedent to the commencement of this action.

STATEMENT OF FACTS

23. TROY ANTHONY JAMES JR. aka DEZINA LEGACY (herein after, “Mr. Legacy”) was a fiancé to Rhonda Williams, a father to D.L. Jr., and a clothing designer.

24. On June 4, 2022, at or near 149th Street and Adam Clayton Powell Boulevard in Manhattan, New York, Mr. Legacy was lawfully present when New York City Police Department (“NYPD” Officers John Does 1, 2, 3, etc. unlawfully pursued, falsely arrested and caused and/or contributed to his death.

25. Upon information and belief, Mr. Legacy parked his vehicle in the vicinity of 149th Steet and Adam Clayton Powell Boulevard.

26. Upon information and belief, Mr. Legacy exited his vehicle and thereafter attempted to get a cab.

27. Upon information and belief, NYPD Officers John Does 1, 2, 3 etc., without lawful purpose, engaged Mr. Legacy in a foot pursuit for several blocks.

28. NYPD Officers John Does 1, 2, 3 etc. unlawfully detained Mr. Legacy and placed him in handcuffs.

29. After NYPD Officers John Does 1, 2, 3 etc. unlawfully placed Mr. Legacy in handcuffs, Mr. Legacy began having difficulty breathing and suffered a cardiac event.

30. Upon information and belief, Mr. Legacy told NYPD Officers John Does 1, 2, 3 etc. that he was dying.

31. NYPD Officers John Does 1, 2, 3 etc. did not remove the handcuffs from Mr. Legacy while he required medical assistance.

32. NYPD Officer John Does 1, 2, 3 etc. administered chest compressions to Mr. Legacy while he was on his back with his hands under him in handcuffs.

33. Onlookers pleaded with NYPD Officers John Does 1, 2, 3, etc. to remove the handcuffs from Mr. Legacy while administering chest compressions.

34. Despite the onlookers' pleas, NYPD Officer John Does 1, 2, 3 etc. continued to administer chest compressions to Mr. Legacy while he was on his back with his hands under him in handcuffs.

35. Upon information and belief, there was a significant delay in calling emergency medical services and for those emergency medical services to arrive.

36. Mr. Legacy was taken to Harlem Hospital Center at approximately 3:00 a.m.

37. Mr. Legacy was pronounced dead at 6:57 a.m.

38. Since his death, Mr. Legacy's family, including his fiancée, Rhonda Williams, has repeatedly tried to obtain information about his death from the NYPD, to no avail.

39. On September 30, 2022, Plaintiffs sent notices to preserve to the NYPD and the Office of the Attorney General for the State of New York to preserve all information and documentation relating to this incident.

40. On September 30, 2022, Plaintiffs sought to obtain the autopsy report however, the family was informed that the records would not be released because Letters of Administration were required.

41. Mr. Legacy's family was permitted to view short sections of body-worn camera ("BWC") video at the Office of the Attorney General for the State of New York, but were not given access to the videos nor were they permitted to view all of the BWC videos, nor the entirety of each video.

42. On September 27, 2023, the Surrogate's Court of the State of New York, County of New York issued Letters of Administration to Rhonda Williams.

43. On October 3, 2023, Plaintiff Rhonda Williams filed a FOIL request with NYPD.

44. On October 6, 2023, the NYPD responded to Plaintiff's FOIL request indicating that a response would not be forthcoming until February 2024.

45. On November 6, 2023, the NYPD denied Plaintiffs' FOIL request stating: "[NYPD] must deny access to these records on the basis of Public Officers Law Section 87(2)(e)(i) as such records/information, if disclosed would interfere with law enforcement investigations or judicial proceedings."

46. On November 10, 2023, Plaintiffs appealed the denial of their FOIL request to the NYPD.

47. On October 3, 2023, Plaintiff Rhonda Williams filed a FOIL request with the New York City Fire Department ("FDNY").

48. As of the date of this filing, the FDNY has not yet responded to Plaintiff's request or produced any documents to Plaintiff.

49. On October 3, 2023, Plaintiff requested the autopsy report from the Office of the Chief Medical Examiner ("OCME").

50. On October 13, 2023, the Office of the Chief Medical Examiner produced and medical records librarian Corrine Hayes certified that "all the documents containing the [Troy Anthony James Jr.] OCME medical examiner case file" had been produced.

51. According to records produced by the OCME, Mr. Legacy's cause of death was "cardiac dysrhythmia complicating altered mental status of unknown etiology."

52. According to the records produced by the OCME, the manner of Mr. Legacy's

death is “undetermined.”

53. The autopsy of Mr. Legacy notes several blunt impact injuries to his head, neck, and extremities.

54. On October 3, 2023, Plaintiff Rhonda Williams submitted authorizations for medical records to Harlem Hospital Center (“HHC”).

55. As of the date of this filing, the HHC has not yet responded to Plaintiff’s request or produced any documents to Plaintiff.

56. On October 3, 2023, Plaintiff Rhonda Williams filed a FOIL request to the New York State Office of the Attorney General, Investigative Counsel Office of Special Investigations (“OAG OSI”).

57. On November 7, 2023, the OAG denied Plaintiffs’ FOIL request stating:

Please be advised that the records that respond to your request are exempt from disclosure and have been withheld pursuant to:

- Public Officers Law § 87(2)(e), because the documents requested were compiled for law-enforcement purposes and would, if disclosed, interfere with law-enforcement investigations or judicial proceedings or deprive a person of a right to a fair trial or impartial adjudication.

58. On November 10, 2023, Plaintiffs appealed the denial of their FOIL request to the OAG.

59. On October 3, 2023, Plaintiff Rhonda Williams filed a FOIL request to New York City Office of Technology and Innovation (“OTI”).

60. On November 13, 2023, OTI responded to Plaintiff’s the October 3, 2023 FOIL requests stating that it was “continuing to research and review” and required an additional twenty (20) days to respond on or about December 11, 2023.

FIRST CAUSE OF ACTION
Wrongful Death

61. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

62. The acts of the Defendants, alleged, herein, wrongfully caused the death of Mr. Legacy.

63. By reason of the foregoing, D.L. Jr., as the child of Mr. Legacy and therefore the statutory distributee of Mr. Legacy's estate, sustained pecuniary and non-economic loss resulting from the loss of love, comfort, society, attention, services, and support of Mr. Legacy. Defendants are liable for the wrongful death of Mr. Legacy.

64. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages herein alleged.

65. As a consequence, Plaintiffs suffered damages in an amount to be determined at trial.

66. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

67. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

SECOND CAUSE OF ACTION
Conscious Pain and Suffering

68. The Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. The acts of the Defendants, alleged herein, wrongfully caused and permitted Mr. Legacy to suffer physical, mental, and emotional pain, continuing until his death.

70. As a direct and proximate result of this unlawful conduct, Mr. Legacy sustained the damages herein alleged.

71. After being arrested, Mr. Legacy endured extreme pain and suffering until his death which occurred while he remained in handcuffs in the care and custody of Defendants.

72. As a direct and proximate result of Defendants' deprivation of Mr. Legacy's rights, Mr. Legacy's distributees have suffered damages in an amount to be determined at trial.

73. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

74. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

THIRD CAUSE OF ACTION
False Arrest and False Imprisonment

75. The Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

76. The Defendant NYPD Police Officers John Does 1, 2, 3, etc., through the foregoing acts, caused Mr. Legacy to be wrongfully detained and arrested without good faith, reasonable suspicion, or legal justification, and of which detention Mr. Legacy was aware and to which he did not consent.

77. Defendant NYPD Police Officers John Does 1, 2, 3, etc. committed the foregoing acts intentionally, willfully, and with malicious disregard for Plaintiff's rights and are therefore liable for punitive damages.

78. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

79. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

FOURTH CAUSE OF ACTION

Assault

80. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

81. Defendants without just cause, willfully and maliciously threatened to use physical force against Mr. Legacy, ultimately causing his death.

82. Defendants committed the foregoing acts intentionally. Willfully and with malicious disregard for Mr. Legacy's rights, and therefore liable for punitive damages.

83. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

84. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

FIFTH CAUSE OF ACTION

Battery

85. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

86. Defendants without just cause, willfully and maliciously used physical force against Mr. Legacy, ultimately causing his death.

87. Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for Mr. Legacy's rights, and therefore liable for punitive damages.

88. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

89. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

SIXTH CAUSE OF ACTION

Negligent Failure to Protect

90. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

91. Defendants negligently failed to provide for the safety, security and protection of Mr. Legacy in their care and custody by failing to comply with the New York Patrol Guide, failing to remove Mr. Legacy's handcuffs while he required medical attention, and failing to secure emergency medical services in a timely manner.

92. As a result of the negligence of Defendants, its agents, servants and employees, as aforesaid, Plaintiff has suffered extreme emotional harm, physical injury, and loss of life.

93. At all relevant times, Defendant NYPD Police Officers John Does 1, 2, 3, etc. were employees of the City and were acting within the scope of their employment.

94. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of *respondeat superior* for the actions of Defendant NYPD Police Officers John Does 1, 2, 3, etc. as set forth herein.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention, and Supervision

95. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

96. Defendant the City of New York negligently hired, screened, retained, supervised, and trained defendants. The acts and conduct of the Defendant NYPD Police Officers John Does 1, 2, 3, etc. were the direct and proximate cause of injury and damage to Mr. Legacy and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

EIGHTH CAUSE OF ACTION

Denial or Delay of Medical Care and/or Medication

97. Plaintiffs incorporate by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

98. Defendants denied and/or delayed providing Mr. Legacy reasonable, good faith medical attention while he was in custody of Defendant NYPD Police Officers John Does 1, 2, 3, etc.

99. As a result, Mr. Legacy suffered serious injury, significant exacerbation of injury, and or/death.

100. Defendants' conduct violated New York Civil Rights Law Section 28.

DEMAND FOR RELIEF

WHEREFORE, Plaintiffs demand judgment against the Defendants jointly and severally and prays for relief as follows:

- a. compensation for violation of constitutional rights and common law torts, pain, suffering, mental anguish and humiliation;
- b. an award of punitive damages against the Individual Defendants;
- c. compensations for attorneys' fees and the costs and disbursements of their action;
- d. interest; and

e. for such other further and different relief as to the Court may seem just and proper.

Dated: November 13, 2023
New York, New York

Respectfully Submitted,

THE ABOUSHI LAW FIRM PLLC



BY: Tahanie A. Aboushi, Esq.
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(212) 490-0400

VERIFICATION

Tahanie A. Aboushi, Esq., an attorney duly admitted to practice law in the State of New York, under penalties of perjury, affirms the following: That deponent is the attorney for the Plaintiff(s) in the action within; that deponent has read the foregoing Complaint and knows the contents thereof; that the same is true to the deponent's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters believes it to be true and the reason this verification is not made by Plaintiff(s) and is made by deponent is that Plaintiff(s) is/are not presently located in the county where the deponent-attorney maintains their office.

Dated: November 13, 2023
New York, New York

Respectfully submitted,



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1441 Broadway, Fifth Floor
New York, NY 10018